



Danaher - Masimo

MN-15011

Phase 1 Determination

Acquisition may be put into effect

4 May 2026

1. Determination and statement of reasons

Notified acquisition	Danaher Corporation (Danaher) proposes to acquire 100% of the outstanding share capital of Masimo Corporation (Masimo) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Danaher, is a global science and technology company. Danaher designs, manufactures and markets professional, medical, industrial and commercial products and services under three core segments: biotechnology, life sciences, and diagnostics. The target, Masimo, Masimo is a global medical technology company. Masimo is a provider of pulse oximetry and other patient sensors and monitoring solutions.
Relationship between the parties	The parties both supply patient monitor products. Further, Danaher supplies a product called transcutaneous monitors (TCMs), certain of which incorporate Masimo's pulse oximetry sensors.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and information from third parties. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • There is limited horizontal overlap between Danaher and Masimo's products. Danaher's patient monitors are primarily used in ICU and NICU settings, while Masimo's patient monitors are primarily used in general wards. • Danaher would likely continue to be constrained by alternative suppliers of patient monitoring technology by Medtronic, Philips, MindRay, GE Healthcare and Sentec. • Danaher is unlikely to have the ability to foreclose downstream rivals supplying TCMs in Australia from access to pulse oximetry sensor technology following the Acquisition, given there are alternative suppliers of pulse oximetry technology (Medtronic, Philips, Mindray, Sentec).

Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**